

Court No. - 39

Case :- WRIT - C No. - 43757 of 2014

Petitioner :- M/S Prime Pulp & Paper Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitaran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Jagdish Prasad Mishra

Counsel for Respondent :- A.K. Saxena, A.K. Saxena

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Learned Counsel for the petitioner prays for and is allowed 10 days time to file a supplementary affidavit, annexing therewith, the documents to demonstrate the fact that he has applied for grant of pre payment meter.

Put up as fresh on 4.9.2014.

Order Date :- 22.8.2014

n.u.

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Counsel for Respondent :- A.K. Saxena, A. K. Saxena

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Supplementary affidavit filed by the petitioner is taken on record.

Connect and list with Writ Petition (C) No. 51844 of 2009.

Heard learned counsel for the petitioner as well as Shri A. K. Saxena, learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 20.04.2014 issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioner also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 4.9.2014/Dcs

Chief Justice's Court

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Counsel for Respondent :- A.K. Saxena,A,N.Singh,A.K. Saxena

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)